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Case Number: 23STCV23309 Hearing Date: July 28, 2026 Dept: 508

Superior Court
of California

County of Los
Angeles

Department 508

KIMBERLY D. HINES,

Plaintiff,

vs.

LOS ANGELES COUNTY EMPLOYEES RETIREMENT
ASSOCIATION,

Defendant.

Case No.:

23STCV23309

Hearing Date:

July 28, 2026

Hearing Time:

2:00 p.m.

[TENTATIVE]

ORDER RE:

DEFENDANT LOS ANGELES COUNTY EMPLOYEES
RETIREMENT ASSOCIATION'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE,
SUMMARY ADJUDICATION OF ISSUES

Background

On September 26, 2023,
Plaintiff Kimberly D. Hines ("Hines") filed a complaint against Defendant Los
Angeles County Employees' Retirement Association ("LACERA"), alleging three
causes of action for violations of FEHA: (1) discrimination (sex and race), (2)
retaliation, and (3) failure to prevent discrimination, harassment, or retaliation.

LACERA now moves for summary judgment
or, in the alternative, summary adjudication. Hines opposes. LACERA replied.

Evidentiary Objections

In the parties'
joint statement on the 43 evidentiary objections interposed by LACERA, the parties
stated that they "stipulated to a majority of the evidentiary objections.
However, the following objections require the Court's ruling: 18, 19, 22, 27,
28, 33, 34, 35, 36, 37, 41, 42." (Joint Report, 1:25-26.) The parties' joint
statement shows that all the objections they resolved were sustained; no
objections were withdrawn or overruled. The Court lists the stipulated objections
below, and rules on the remaining objections as follows:

Objection Nos. 1-17,
19-21, 23-32, 34, 35, 37-43: sustained

Objection No. 18:
sustained in part (overruled only as to "LACERA ... did not transfer me to
another Division...")

Objection No. 22:

overruled

Objection No. 36:

sustained in part (overruled only as to “the subordinate was transferred into my division.”)

Objection No. 33 overruled

Legal Standard

“[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” ((Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A triable issue of material fact exists if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. (Ibid.)

“When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” ((Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467); (Code Civ. Proc., § 437c, subd. (c).)

A motion for summary judgment or adjudication’s function is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 843.) In analyzing such motions, courts must apply a three-step analysis: “(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent’s claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue.” ((Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.) Summary judgment or adjudication is proper when “all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” ((Code Civ. Proc., § 437c, subd. (c)); (see also Villa

v. McFerren (1995) 35 Cal.App.4th 733, 741.)

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. ((Aguilar v. Atlantic Richfield Co., supra, 25 Cal.4th at p. 850.) As to each cause of action as framed by the complaint, the defendant moving for summary judgment or adjudication must satisfy the initial burden of proof by presenting affirmative evidence to disprove at least one essential element of the plaintiff's cause of action, show that an element cannot be established, or establish an affirmative defense. ((Code Civ. Proc., § 437c, subd. (p)(2)); (Sanchez v. Swinerton & Walberg Co. (1996) 47 Cal.App.4th 1461, 1465.)

Once the moving defendant meets its burden for a particular cause of action, the burden shifts to the nonmoving plaintiff. ((Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (Ibid.)

On a motion for summary judgment or adjudication, the moving party's supporting documents are strictly construed, while the nonmoving party's documents are liberally construed. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 24.) Any "doubts as to the propriety of granting the motion should be resolved in favor of the party opposing the motion." (Ibid.)

Discussion

A. Allegations of the Complaint

Hines' complaint alleges that, inter alia, she "began her career with County of Los Angeles ('County') on or about October 2, 1989. In 1996, she began working at ... [LACERA], rising to the position of a Division Manager in July 2002. Plaintiff was one of few Black females in a managerial position at LACERA... Throughout her 33 years with the County, Plaintiff often went above and beyond the call of duty and had an exemplary record, with only one minor disciplinary action." (Compl., ¶ 8.) "Plaintiff's duties as Division Manager included planning, organizing, and directing the Administrative Services Division through subordinate managers and supervisors who have direct responsibility for document processing, mail distribution, procurement, budgeting, risk management, and contracts." (Compl., ¶ 9.) "On

July 21, 2022, LACERA's Assistant Chief Executive Officer Laura Guglielmo issued Plaintiff a Notice of Demotion based on claims made by three problematic subordinate Caucasian employees (one male and two female) who falsely accused Plaintiff of creating a hostile work environment, discrimination and retaliation. These subordinate employees complained about Plaintiff's demanding management style and communication style." (Compl., ¶ 10.) "On June 9, 2021, a member of LACERA's Human Resources Department conducted an intake meeting with the Caucasian male employee concerning his claims against Plaintiff. She spoke to him at length and concluded that '[Plaintiff's] behavior towards [the male employee] does not appear to be retaliatory in nature and therefore would not warrant an investigation ...'" (Compl., ¶ 11.) "Dissatisfied with these findings, LACERA hired a workplace investigator ('OIG investigator) to investigate the claims against Plaintiff. The OIG investigator interviewed all three complainants and found that the complainants lacked credibility and 'all had a tendency of portraying [Plaintiff] in the most negative light possible, which was not reasonable.' The OIG investigator also found that 'some of the witnesses were so heavily biased against [Plaintiff] and were not reliable.'" (Compl., ¶ 12.)

Plaintiff alleges that "[d]espite Plaintiff's innocence, on September 29, 2022, Luis Lugo, Deputy Chief Executive Officer issued Plaintiff a Final Notice to Demotion, effective October 15, 2022 reducing Plaintiff from the position of Division Manager, LACERA, in the Administrative Services Division to Senior Internal Auditor with a significant reduction in her salary." (Compl., ¶ 13.) Plaintiff alleges that "[t]he Notice of Intent to Demote and the Final Notice to Demotion are replete with factual inconsistencies and inaccuracies and LACERA knew of the factual inconsistencies and inaccuracies prior to demoting Plaintiff." (Compl., ¶ 14.)

Also, "[o]n April 22, 2019, the Caucasian male subordinate employee accused Plaintiff of sexual harassment and discrimination. LACERA hired a workplace investigator who conducted a full investigation into the allegations made against Plaintiff. On October 4, 2019, LACERA informed Plaintiff that 'Based on the findings of the investigation, it is concluded that the allegations of sexual harassment and racial discrimination against you are not supported by the facts and therefore are unfounded.'" (Compl., ¶ 15.) "After learning of the specious 2019 complaint, Plaintiff grew concerned about her hostile work environment. At various times prior to her demotion, she advised her superiors that she felt targeted by the Caucasian male employee. She believed that he did not like reporting to a

strong Black female.” (Compl., ¶ 16.) Plaintiff alleges that “LACERA did not conduct a workplace investigation after Plaintiff told her superiors that she felt targeted by the male employee. LACERA knew or should have known of the male employee’s hostility towards Plaintiff and failed to take immediate and appropriate corrective action to stop the harassment.” (Compl., ¶ 17.)

Plaintiff alleges that “[a]fter Plaintiff’s participation in protected activity and instead of protecting her, LACERA required her to continue working with the male employee. After the 2019 complaint, the male employee became emboldened. In June or July 2021, he orchestrated a second campaign of falsely accusing Plaintiff of managerial misconduct. Despite his apparent motive and lack of credibility, LACERA sided with the male employee. His allegations largely served as the basis for Plaintiff’s demotion.” (Compl., ¶ 18.) “Within a relatively short time after Plaintiff engaged in protected activity, LACERA subjected Plaintiff to a demotion... The demotion stripped her of the authorization to supervise subordinate employees.” (Compl., ¶ 19.) “Prior to engaging in protected activity, LACERA recognized Plaintiff’s contribution as a successful manager. She excelled as a manager and LACERA never questioned her management style.” (Compl., ¶ 20.)

B. Evidence

Relevant to All Causes of Action

In April 2019, James Beasley (“Beasley”), who was Hines’ direct report in Administrative Services, made an internal complaint against Hines, accusing her of sexual harassment. (Rice Decl., ¶ 3; Guglielmo Decl., ¶ 2.) LACERA retained Public Interest Investigations, Inc. (“PII”) in May 2019 to investigate Beasley’s sexual harassment claim. (Rice Decl., ¶ 4; Ntoya Decl., ¶ 14, Ex. F.) PII prepared two reports for LACERA in September 2019. (Rice Decl., ¶ 4; Ntoya Decl., ¶ 15, Ex. F.) The reports concluded that Hines did not sexually harass Beasley. (Rice Decl., ¶ 5.) However, the report did find “that a preponderance of the evidence substantiated Beasley’s allegation that Hines has yelled at him or raised her voice to him, and that in doing so she engaged in intimidating and humiliating behavior.” (Rice Decl., ¶ 5, Ex. F, LACERA00527.) The report also “concluded that the allegations that Hines yelled at her staff was substantiated, and that a reasonable person could find Hines’s yelling, harsh words, and physical manifestations of anger to be hostile and offensive.” (Rice Decl., ¶ 5, Ex. F, LACERA00611-00612.) The report found that it is unclear whether the yelling was

done with malice, but there was a general understanding that Hines yells at her staff, and this intimidated and undermined work performance. (Rice Decl., Ex. F, LACERA00612.) PII also determined, based on the available evidence, that “Hines inappropriately commented on employees’ race, skin color, or ethnicity.” (Rice Decl., ¶ 5, Ex. F, LACERA00591.) In response to the wrongdoing identified in the 2019 PII Report, LACERA drafted a Letter of Reprimand and specifically prohibited Hines from retaliating against her staff, which Hines read and reviewed. (Rice Decl., ¶¶ 7-9; Ex. J.) However, LACERA decided not to formally issue the Letter of Reprimand or other formal discipline. (Rice Decl., ¶¶ 9-13; Kreimann Decl., ¶ 7.) After the 2019 allegations, Hines believed she was being targeted by Beasley and complained to her supervisor that she was concerned about his conduct, concerned about her physical safety, and believed she was being treated unfairly. (Hines Decl., ¶¶ 12-13.)

Thereafter, in 2021, three Administrative Services staff members, Beasley, Gina Marie Massarotti, and Roxanne Martin, complained that Hines retaliated against them for their involvement in the 2019 sexual harassment investigation. (Ntoya Decl., ¶¶ 17-19, Exs. G, H.) Following this, LACERA retained Oppenheimer Investigations Group, LLP (“OIG”) to conduct an investigation of the 2021 retaliation claims and issue a report. (Ntoya Decl., ¶ 21, Ex. I.) OIG concluded that Hines’ unpredictable and unprofessional actions created a negative work environment, the Administrative Services Division relationships were beyond repair, and removing Hines as the Division Manager would be the best course of action. (Rice Decl., ¶ 16; Ntoya Decl., Ex. I, LACERA00733.) Specifically, the report found that a “preponderance of the evidence support[ed] a finding that Hines engaged in most, but not all, of the conduct alleged by Beasley ... [and] Hines treated Beasley in this way, in part, because he initiated the 2019 investigation against Hines.” (Rice Decl., ¶ 16; Ntoya Decl., Ex. I, LACERA00721.) The report also found that a “preponderance of the evidence support[ed] a finding that Hines and Martin had a disagreement in November 2018 regarding the delivery of packages, during which time Hines told Martin that the Communications Division did not like her.” (Rice Decl., ¶ 16; Ntoya Decl., Ex. I, LACERA00725.) The report made findings “that Hines made negative remarks about Massarotti’s age and ability to promote.” (Rice Decl., ¶ 16; Ntoya Decl., Ex. I, LACERA00732.) The report “support[ed] a finding that Hines misrepresented a social relationship with Ntoya, the new HR Director,” however, the evidence did not support finding that Hines did so for the reasons alleged by the complainants. (Rice Decl., ¶ 16; Ntoya Decl., Ex. I, LACERA00728.)

Based upon the outcome of the OIG

investigation, the Executive Group unanimously decided to demote Hines from Division Manager, Administrative Services to the Senior Internal Auditor position in the Internal Audit Division. (Kreimann Decl., ¶¶ 10-12; Lugo Decl., ¶¶ 4-10; Guglielmo Decl., ¶¶ 5-7; Rice Decl., ¶¶ 16-19; Ntoya Decl., ¶¶ 24-28.) The Executive Group explains that, in making this decision, in no way did they consider, or were motivated in any way, by Hines' race, age, and/or gender. (Kreimann Decl., ¶ 8; Lugo Decl., ¶¶ 5-7; Guglielmo Decl., ¶¶ 5-8; Rice Decl., ¶¶ 16-19; Ntoya Decl., ¶¶ 25-28.)

C. First

Cause of Action for Race and Sex Discrimination

LACERA moves

for summary adjudication as to the first cause of action because it "demoted Hines for legitimate and non-discriminatory reasons." (Notice of Mot., 2:11.)

"It is an unlawful employment practice...(a) [f]or an employer, because of the race, religious creed, color, national origin, ancestry, physical disability, mental disability, reproductive health decisionmaking, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or veteran or military status of any person, to refuse to hire or employ the person or to refuse to select the person for a training program leading to employment, or to bar or to discharge the person from employment or from a training program leading to employment, or to discriminate against the person in compensation or in terms, conditions, or privileges of employment." ((Gov. Code, § 12940, subd. (a).)

California

applies the burden-shifting formula set forth in *McDonnell Douglas Corp. v. Green* (1973) 411 U.S. 792, 802, under which a plaintiff must first establish a prima facie case of discrimination by showing that: (1) he or she was a member of a protected class, (2) that he or she was qualified for and performing competently in the position she held, (3) he or she suffered an adverse employment action, and (4) conduct by the employer suggesting that it is more likely than not that the adverse employment action was due to a discriminatory motive. ((*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 355.) If the

plaintiff establishes a prima facie case, the burden shifts to the employer to rebut the presumption of discrimination by offering a legitimate nondiscriminatory reason for the adverse employment action. ((Ibid.) If the employer meets this burden, the presumption of discrimination disappears, and the burden shifts back to the plaintiff to produce evidence that the employer's reasons for the adverse employment action were a mere pretext for discrimination. ((Id. at p. 356.)

LACERA asserts that "[t]wo separate and independent investigators determined that Hines engaged in serious conduct violations within the span of two years. First, PII established that Hines routinely yelled at her staff creating an unproductive environment, she shoved papers to show anger, and she made inappropriate comments about staff members' skin-color, ethnicity and race. LACERA disciplined Hines in 2019, but it did not have the effect of curbing her behavior; instead, her misconduct continued." (Mot., 13:19-24.) LACERA further asserts that "[w]hen OIG found that Hines retaliated against her staff in 2021, LACERA had to take a much more aggressive approach to discipline. Not only did Hines continue her bad conduct by retaliating against her staff for their participation in an investigation, through her continued actions, Hines now exposed LACERA to potential claims by those employees she retaliated against." (Mot., 13:25-14:1.) LACERA explains that its "decision to demote Hines was based in sound business judgment. The Executive Group carefully considered the conclusions in the OIG Report and the ramifications of allowing Hines to continue her highly unprofessional conduct. Certainly, LACERA could not allow someone who was found twice of improper and troubling conduct to continue to supervise people. The only rational response was to either terminate Hines' employment or demote her. Moreover, LACERA already disciplined Hines in 2019 but she continued with the same bad conduct lending further credence to the necessity to demote Hines. It was only after this careful consideration that LACERA decided a demotion was appropriate to discipline Hines for her continued bad acts and ensure she could not continue such conduct." (Mot., 14:2-10.)

Hines asserts that she made a prima facie showing of discrimination because she "is an African-American female and therefore a member of protected classes under FEHA. (Hines Depo II 200:34-45; Plaintiff's AMF No. 16.) She was demoted from Division Manager to Senior Internal Auditor, resulting in removal from management and a reduction in pay. (Rubin Decl. ¶ 19; Plaintiff's AMF No. 7.) Demotion constitutes an adverse

employment action.” (Opp., 8:10-14.) The Court notes that Hines cites her deposition and her additional material facts in support, but it does not appear that Hines included her deposition transcripts as an exhibit. Included in LACERA’s exhibits are portions of Hines’ deposition, but this does not include the specific section Hines references. The additional material facts also cite the same deposition transcript that the Court does not have.

However, Hines contends that the justification that her demotion is based on the findings from the 2021 OIG investigation is a pretext for discriminatory motive. Plaintiff asserts that “[f]irst, decision-makers did not conduct an independent investigation. The CEO testified that he relied upon the OIG report and discussions with Executive Group members rather than independently reviewing the underlying evidence. (Rice Depo 41:21–42:3; Plaintiff’s AMF No. 2.) Executive Group members did not personally witness Plaintiff violate any LACERA policy.” (Opp., 8:22-25.) Hines asserts that “[a] failure to independently assess allegations may support an inference that the stated reason was pretextual.” (Opp., 8:26-27.) To support this, Hines cites *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 271-272, where the court stated that “[p]retext may ... be inferred from the timing of the company’s termination decision, by the identity of the person making the decision, and by the terminated employee’s job performance before termination.” (citing *Flait v. North American Watch Corp.* (1992) 3 Cal.App.4th 467, 479.) The court explained that “[a]n inference, ... is driven by logic, not law. It ‘is a deduction of fact that may logically and reasonably be drawn from another fact or group of facts ... established in the action.’ (Evid.Code, § 600, subd. (b).)” (Id. at p. 273.)

However, the Court does not see a legal basis in *Nazir*, *supra*, or otherwise, for the assertion that failure to independently assess allegations supports a pretextual decision. At the time of Hines’ demotion, the Executive Group considered the report and its findings in making the ultimate decision.

Hines also asserts that “[s]econd, comparator evidence reflects disparate discipline. Another Division Manager accused of sexual harassment and retaliation received only a five-day suspension and was not demoted.” (Opp., 9:1-2.) Hines asserts that “[e]vidence that similarly situated managers outside Plaintiff’s protected class received less severe discipline for comparable allegations supports an inference of discriminatory motive.” (Opp., 9:3-6.) From the evidence provided by Hines, the

other Division Manager who had sexual harassment accusations received a five-day suspension. (Rubin Decl., Ex. E, Disclosure p. 1.) However, this assertion, if anything, cuts against Hines' contention. Hines did not receive a suspension when the sexual harassment accusation was made against her. (Rubin Decl., Ex. E, Disclosure p. 1.) Hines' demotion ultimately occurred after an internal investigation concluded she engaged in retaliatory, discriminatory, and otherwise harmful behavior.

Third, Hines contends that "following the 2019 investigation into misconduct allegations, Plaintiff was not demoted and remained in her Division Manager role. (Rice Depo 44:22–24; Plaintiff's AMF No. 10.) A reasonable jury could conclude that the later decision to impose harsher discipline reflects inconsistent application of policy rather than neutral enforcement." (Opp., 9:7-10.)

Lastly, Hines contends that she "testified that she believed actions taken against her were directed at Black women managers and that there were very few Black female managers at LACERA. (Hines Depo II 200:34–55; Plaintiff's AMF Nos. 16–17.) While subjective belief alone is insufficient, when combined with evidence of procedural irregularities and disparate discipline, it contributes to a triable issue of fact." (Opp., 9:11-16.) Hines cites her deposition, but as noted above, the Court does not have a transcript from her deposition.

In response, LACERA asserts that it "articulated a legitimate, non-discriminatory and nonretaliatory reason to demote Plaintiff based on an independent investigator's conclusion that Plaintiff retaliated against three of her direct reports. To defeat this motion, Plaintiff must meet her burden to show that reason is a pretext. Plaintiff does not offer any admissible evidence in her Opposition to meet this burden." (Reply, 2:23-27.) LACERA asserts that it "correctly investigated the complaints filed against Ms. Hines by three LACERA employees and then relied on the neutral third-party investigation report by OIG. It is irrelevant whether members of LACERA's Executive Group directly observed Plaintiff's retaliatory conduct. It makes no sense to require employers to have first-hand knowledge of its employees' bad actions as a condition to impose disciplinary action. LACERA's Acting Chief Executive Officer Luis Lugo's reliance on OIG's report, instead of conducting his own redundant investigation, is exactly what he should have done. His reliance on the OIG report, prepared by a neutral third-party attorney investigator, only underscores that LACERA's decision to

demote Plaintiff was reasonable, fair, and not retaliatory or discriminatory.”
(Reply, 3:3-13.)

LACERA cites King

v. United Parcel Service, Inc. (2007)

152 Cal.App.4th 426, 440, where the court found that “[b]ecause neutral personnel investigated the facts, eyewitnesses provided statements, and plaintiff was given an opportunity to explain what happened, we conclude UPS conducted an adequate investigation as a matter of law.” In King, the Court of Appeal expressed that “[t]he question critical to UPS’s liability is not whether plaintiff in fact violated the integrity policy..., but whether UPS, acting in good faith following an appropriate investigation, had reasonable grounds for believing plaintiff had done so.” ((Id. at p. 438.) LACERA contends that “[h]ere, the integrity of the OIG report is without question fair and thorough as a matter of law. OIG interviewed 17 witnesses, some of whom were interviewed two or three times and attached 58 exhibits to the report. OIG interviewed Plaintiff three times and in addition Plaintiff submitted two supplemental memoranda to OIG which were considered and attached to the OIG report. By the standards set forth in King, the OIG report was adequate as a matter of law and LACERA had every right to rely on this report.” (Reply, 3:23-4:1.)

LACERA also cites Jameson v. Pacific Gas & Electric Co. (2017) 16 Cal.App.5th 901, where the court affirmed a finding of summary judgment in favor of an employer who utilized a third-party investigator’s report to terminate an employee. In doing so, the court expressed that “[a]ny investigation can be criticized, and a plaintiff can always assert that more should have been done, or done differently,” but the relevant inquiry is whether, after conducting an investigation, the employer acted in good faith and the employer had reasonable grounds for believing the misconduct. ((Id. at pp. 910-912.) LACERA contends that “[w]hether Plaintiff engaged in retaliatory conduct is not at issue here, and Plaintiff’s arguments on that regard are irrelevant. Rather, the only consideration to grant this motion is whether LACERA acted in good faith to demote Plaintiff after an appropriate determination and investigation. LACERA has made that demonstration. It obtained a report, which is adequate as a matter of law, and relied on that report. There is no other requirement to conduct a redundant investigation.” (Reply, 4:18-23.) LACERA further contends that Hines “fails to present any admissible evidence challenging the OIG findings or that the OIG investigation was inadequate.” (Reply, 5:2-4.)

Furthermore, LACERA asserts that

Hines' comparator evidence assertion is insufficient because she "presents no evidence to support her position that she was treated differently from the male employee because of her protected class." (Reply, 5:26-28.) LACERA cites *Iwekaogwu v. City of Los Angeles* (1999) 75 Cal.App.4th 803, 817, where the court stated that "comparative evidence of pretext [] is[] evidence that [one] was treated differently from others who were similarly situated." However, as LACERA contends, "Plaintiff has failed to proffer any evidence that the African American male Manager who received a five-day suspension was similarly situated to Plaintiff or displayed similar conduct." (Reply, 6:8-10.)

Considering the foregoing, the Court finds that Hines did not raise a triable issue of material fact. LACERA established that it conducted two third-party investigations into Hines. Following the second investigation's adverse result, LACERA's executive board demoted Hines. Hines does not raise a triable issue of material fact demonstrating that LACERA improperly relied on the report, nor does Hines demonstrate facts showing a possibility of pretext. Hines generally sets forth reasons why LACERA's actions were improper or could be deemed improper, but Hines does not carry the burden of supplying the Court with material facts that she was performing competently in her position and that the decision was grounded in a discriminatory motive. LACERA presents evidence that it demoted Hines following a second investigation into her work conduct that resulted in a finding that Hines acted oppressively and retaliated against her subordinates. In light of the foregoing, the Court grants LACERA's motion for summary adjudication for the first cause of action.

D. Second Cause of Action for Retaliation

LACERA moves for summary adjudication on the second cause of action, asserting that the "retaliation claim fails on the same basis as Hines' discrimination claim because there is no evidence that retaliatory animus played any role in Hines' demotion." (Mot., 14:13-14.)

"[I]n order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a 'protected activity,' (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) Protected

activity includes opposing “any practices forbidden” under FEHA or filing a complaint, testifying, or assisting in any proceeding under FEHA. ((Gov. Code, § 12940, subd. (h).)¿

LACERA contends that “Hines cannot make this showing. There is no doubt that LACERA made a legitimate business decision in demoting Hines. As shown above, LACERA simply could not tolerate a manager who was guilty of retaliatory conduct and egregiously inappropriate conduct such as yelling or making inappropriate remarks to her staff. Additionally, Hines’ continued abuse of her staff put LACERA at risk of potential claims by Hines’ direct reports. When Hines’ conduct continued despite counseling, LACERA chose to demote Hines and remove her from a supervisory position.” (Mot., 14:27-15:5.)

Regarding the retaliation cause of action, Hines sets forth almost identical assertions. Hines asserts that “[p]rior to the initiation of the 2021 investigation, Plaintiff reported that she believed she was being targeted because of her race and gender... Internal opposition to perceived race and gender discrimination constitutes protected activity as a matter of law. A reasonable jury could conclude that Plaintiff engaged in activity protected by FEHA.” (Opp., 5:22-6:1.)

LACERA contends Hines’ assertions are unfounded. Specific to the retaliation section, LACERA refutes Hines’ assertion about the timing of her complaints, stating that the “argument of temporal proximity fails as a matter of law.” (Reply, 6:20.) LACERA cites *Le Mere v. Los Angeles Unified School District* (2019)

35 Cal.App.5th 237, 244, where, in that case, the court found that “almost two years elapsed between the 2007 lawsuit and the first alleged instances of retaliation in 2009. A gap of two years is not sufficient as a matter of law to support an inference of causation.” LACERA contends that this “is directly on point” because Hines’ reporting took place between the 2019 and 2021 investigations. (Reply, 6:25-28.) The timeline between Hines’ complaints and the discriminatory action LACERA took against Hines after the second investigation is tenuous given the significant time gap. (See e.g., *Le Mere v. Los Angeles Unified School District*, supra, 35 Cal.App.5th at p. 243 [the Court of Appeal stated that “[s]everal federal cases hold that intervals of more than a few months were too long to support causation.”].)

Considering Hines’ inability to demonstrate temporal proximity and the assertions set forth in the discrimination section, Hines

does not raise a triable issue of material fact demonstrating that LACERA's decision to demote Hines was predicated on or related to her complaints to her supervisor. In light of the foregoing, the Court grants LACERA's motion for summary adjudication for the second cause of action.

E. Third

Cause of Action for Failure to Prevent Discrimination, Harassment, or Retaliation

LACERA moves for summary adjudication as to the third cause of action because first, "there was no discriminatory conduct," and second, the third cause of action was "not included or referenced in her California Civil Rights Division complaint." (Notice of Mot., 2:20-25.)

Government

Code section 12940, subdivision (k), prohibits an employer from failing "to take all reasonable steps necessary to prevent discrimination and harassment from occurring." "An employer who knows or should have known of unlawful harassment and retaliation, and fails to take immediate and appropriate corrective action, may be liable for the resulting damages. . . . However, because the statute does not create a stand-alone tort, the employee has no cause of action for a failure to investigate unlawful harassment or retaliation, unless actionable misconduct occurred." (Thompson v. City of Monrovia, supra, 186 Cal.App.4th at p. 880.)

LACERA asserts that this cause of action is derivative of Hines' discrimination and retaliation causes of action, but "[a]s set forth in detail above, Hines cannot show that she was subject to gender or race discrimination or that she suffered retaliation based on her gender or race." (Mot., 15:15-16.) LACERA asserts that it "cannot be liable for failure to prevent these ills, as they did not occur." (Mot., 15:18-19.) Hines disagrees, asserting that "[b]ecause triable issues exist as to discrimination and retaliation, summary adjudication of Plaintiff's failure-to-prevent claim must also be denied." (Opp., 10:14-15.)

Based on the Court's foregoing analysis and Hines' failure to raise a triable issue of material fact under her

discrimination or retaliation causes of action, this cause of action is granted summary adjudication.

Additionally, LACERA points out that "Hines' 2022 California Civil Rights Division ('CRD') complaint alleges gender and race discrimination, as well as a retaliation claims, but entirely left out any mention of, or claim for, a failure to prevent discrimination, harassment, or retaliation. Thus, her alleged failure to prevent discrimination, harassment and/or retaliation is barred because she failed to first file with the EEOC and/or the CRD and summary adjudication is therefore proper." (Mot., 15:27-16:3.) Hines does not appear to refute this in her opposition.

"To exhaust his or her administrative remedies as to a particular act made unlawful by the Fair Employment and Housing Act, the claimant must specify that act in the administrative complaint, even if the complaint does specify other cognizable wrongful acts. [Citation.] We have recognized, in the context of the Fair Employment and Housing Act, that '[t]he failure to exhaust an administrative remedy is a jurisdictional, not a procedural, defect,' and thus that failure to exhaust administrative remedies is a ground for a defense summary judgment." ((Martin v. Lockheed Missiles & Space Co. (1994) 29 Cal.App.4th 1718, 1724.)

Looking at Hines' CRD complaint, it does not refer to a failure to prevent discrimination, harassment, or retaliation. (Compl., Ex. 1.) Accordingly, summary judgment is also granted for the third cause of action due to procedural grounds.

Conclusion

Based on the foregoing, LACERA's motion for summary judgment is GRANTED in its entirety. LACERA is ordered to file a proposed judgment within ten days of this Order.

LACERA is ordered to give notice of this Order.

DATED: July 28, 2026

Hon. Teresa A. Beaudet

Judge, Los Angeles Superior Court